THE COMMISSION

WHAT IS THE COMMISSION, AND WHAT DOES IT DO?

The European Commission has a combination of political and administrative responsibilities. It is based in Brussels, in a building known as Berlaymont, and employs around 33,000 people - a similar number to the UK Home Office.

The key roles of the Commission include:

- Bringing forward proposals for EU laws (the only EU institution able to do so)
- Overseeing the implementation and enforcement of EU laws and rules by governments, businesses, and other actors
- Managing the EU budget
- Taking decisions on competition policy and enforcing rules to prevent anti-competitive action by governments and firms (this is the only policy area where the Commission has final decision-making authority).
- Negotiating trade agreements on behalf of the EU with third countries, or in the World Trade Organization

The Commission is often lobbied by governments, businesses, trade unions and NGOs from both inside and outside the EU.

PERSONNEL

The head of the Commission is its president, currently Ursula von der Leyen. Its leadership is made up of the College of Commissioners, with each member state

nominating one member who then serves as the 'Commissioner' responsible for a certain department.

The Commission sits for five-year terms, which coincide with European Parliament elections, and is usually referred to by the name of its president (e.g., the 'von der Leyen Commission', the 'Juncker Commission).

There are two levels to the Commission

1. *Political Leadership*

The Commission President heads the College of Commissioners, and is chosen by national political leaders in the European Council. The Council is obliged to consider the results of elections to the European Parliament when making their decision.

The requirement for the Council to consider the results of European Parliamentary elections when selecting the Commission President came into force with the Lisbon Treaty in 2009. It was believed this would enhance the Commission's legitimacy, with a number of European Parliamentary Parties arguing the Council should appoint the candidate proposed by the EU party securing the highest number of votes in elections. This became known as the Spitzenkandidaten process.

When the European People's Party topped the polls, the Council nominated that party's chosen candidate, Jean-Claude Juncker. However, the Council bypassed the Spitzenkandidaten system in 2019 to select Ursula von der Leyen, despite the Socialists and Democrats Parliamentary Party (that year's biggest party) proposing Frans Timmermans, as a result of disagreements between member states on Timmermans' suitability as a candidate.

A candidate must be approved by a reinforced qualified majority of members states (at least 72% of European Council members, representing at least 65% of the EU population). The Parliament then hosts a hearing with this candidate - the nominee needs the support of a majority of MEPs to be approved.

27 Commissioners, one from each member state, are chosen by the new President from a list of nominees proposed by each national government. Members of the College swear an oath that they will act in the general interests of the EU, and will not take national or political instructions. Commissioners are each given responsibility for a particular policy area by the Commission President.

Administration

The College is supported by a staff of around 33,000. This administrative support is organised into 'Directorates General' (departments), each headed by a Commissioner, with responsibilities for particular policy areas. The senior civil servant in a DG is known as a 'Director-General'. DGs include Agriculture, Climate Action, Health and Food Safety, and Research and Innovation, amongst others.

Most services staff are recruited via a competitive examination process and must speak at least two of the EU's 24 official languages. They are recruited from all 27 member states.

HOW POWERFUL IS THE COMMISSION?

The Commission is essentially the EU's executive. Much of its power comes from its responsibilities- it is the only EU body with the ability to initiate and draft legislation, though their legislative proposals must be approved by the Council of the European Union and the European Parliament to become law. The DGs and College are often the source of policy proposals which shape the course of European integration, such as the development of the single market.

The President and College are also relatively free from political control. Furthermore, the Commission is the face of the EU on the international stage, with the power to negotiate trade agreements with third countries and entities.

However, the Commission's resources are small. Its administrative capacity is relatively low (33,000 staff compared to the 500,000 that make up the UK Civil Service). The Commission therefore depends on public administrations and agencies within member states to implement policy, and national courts to enforce it.

The remit of the Commission is also monitored by member states. The European Council determines the basis on which the Commission can negotiate trade agreements and gives final agreement to any terms. On most issues, the European Commission can only offer advice to the Council and cannot command it to act.

HOW IS THE COMMISSION SCRUTINISED?

The Commission is accountable to the Council and Parliament, which appoint and confirm members of the Commission including the President. The Parliament also has the power to force the Commission's resignation (as it did in 1999). Action can also be taken by the Court of Justice if the Commission is deemed to violate EU law.

The Council and Parliament also set the financial and audit processes the Commission must follow, with the Parliament deciding whether to approve the Commission's handling of the budget each year. The Council and Parliament also determine the EU budget and salary levels for civil service staff.

Comitology

The 'comitology' system is a series of committees composed of representatives from member states, whether civil servants or technical experts, who scrutinize how the Commission implements EU legislation.

THE EUROPEAN COUNCIL

WHAT IS THE EUROPEAN COUNCIL, AND WHAT DOES IT DO?

The European Council is made up of the elected heads of EU member states. It has no legislative power, but its role is to set the EU's general political direction and long term agenda and handle political issues which may be sensitive with national electorates, particularly during crises. It has specific responsibilities in certain policy areas, including economic and fiscal coordination and freedom, security and justice.

The European Council was not mentioned in any EU treaty until 1987, and it only became an official EU institution with the amendments made by the Lisbon Treaty in 2009.

European Council decisions have helped shape the European Union: treaty change, enlargement, and the development of common foreign policy and the monetary union have all stemmed from its meetings.

The European Council meets a minimum of four times a year, though more frequently when there are political crises or urgent matters to be discussed. The 'family picture', where EU leaders gather before meetings, has become well known.

Confusingly, there are two other important European institutions whose names are very similar to the European Council's. These are:

- **The Council of the European Union: This is another EU institution, also called 'the Council' or the 'Council of Ministers', which brings together ministers and officials from member states. More information on this body can be found below.**
- **The Council of Europe: This body is completely independent of the EU, and focuses on promoting human rights, democracy and the rule of law. Its main instrument is the European Convention on Human Rights.**

Leadership and membership

The head of the European Council is its President, currently Charles Michel. This position is often referred to as the 'permanent presidency'. The post was introduced by the Lisbon Treaty, which states that members of the Council elect the President by qualified majority for a two-and-a-half-year term (they can only serve twice). Before this, the member state holding the rotating presidency of the Council of the European Union (see below) provided the chair.

The President is responsible for convening meetings of the European Council and for chairing them. The President can also call extraordinary sessions of the Council to discuss crises.

The Lisbon Treaty limited membership of the European Council to Heads of State and Government (though the High Representative for Foreign Affairs, President of the European Central Bank and President of the European Parliament may attend meetings, depending on the agenda). Up until 2009, foreign ministers also had membership, but with enlargement, it was thought that meetings would become too large.

Decision Making

The European Council sets out the results of its deliberations in 'Conclusions', which are adopted formally at the end of its meetings. These are agreed by all participants and frequently lay out specific issues for the EU to address, and particular actions or objectives to achieve. Thus, despite its lack of formal legislative power, the European Council plays an important agenda setting role.

THE COUNCIL OF THE EUROPEAN UNION: 'THE COUNCIL OF MINISTERS'

The Council of the European Union is where national ministers meet to negotiate and agree on legislation. They are supported by national Ambassadors to the EU - known as 'Permanent Representatives' - who form the Committee of the Permanent Representatives of the Government of the Member States to the European Union (COREPER).

Decisions are taken by ministers in their area of responsibility. For example, when agriculture is discussed, national farming ministers will meet. Consequently, the Council can meet in ten different formations:

Agriculture and Fisheries	Environment
Competitiveness	Foreign Affairs
Economic and Financial Affairs	General Affairs
Education, Youth, Culture and Sport	Justice and Home Affairs
Employment, Social Policy, Health and Consumer Affairs	Transport, Telecommunications and Energy

Unlike the European Council, the Council of the European Union is a law-making body - though it may respond to the Commission and European Council's requests and act according to guidelines the European Council has set down.

The Council of the European Union has five key responsibilities:

1. ***Negotiating EU laws:*** Member states negotiate with each other and with the Commission in the Council of the European Union, and collectively decide whether to approve, amend or reject proposals from the Commission. In most policy areas, the approval of both the Council and the European Parliament is required for a proposal to become law.

2. ***Coordinating policies:*** The Council monitors the economic and fiscal policies of member states,

3. ***Implementing the EU's Common Foreign and Security Policy:*** This includes the EU's development and humanitarian aid and defence and trade policies. The Council is key to ensuring the EU's external action is coherent and effective.

4. ***Concluding trade agreements:*** The Council mandates the Commission to negotiate with non-EU countries and organizations on its behalf, monitors negotiations, and decides whether to adopt the resulting text.

5. ***Adopting the EU budget:*** Alongside the Parliament, the Council adopts the EU's annual budget.

When Council votes via qualified majority voting, an agreement can only passed if 55% of member states vote in favour of the proposal (i.e. 15) and if the proposal is supported by member states representing at least 65% of the EU population. If a reinforced majority is needed (e.g. when a policy proposal is not from the Commission) then at least 72% of European Council members, representing at least 65% of the EU population is needed.

QUALIFIED MAJORITY VOTING

When voting on an issue, the Council takes its decisions by either simple majority, unanimous vote, or qualified majority, depending on the issue at hand. However, most decisions are made by consensus.

The Presidency

The Council of the European Union also has a presidency that is held by a national government. The presidency rotates amongst member states every six months. The presidency chairs every meeting in the Council, is responsible for preparing the agenda. It is expected to be a neutral chair.

The country currently holding the Council Presidency is expected to work closely with the country its predecessor and successor. Together, this 'trio' outlines an 18-month agenda that lays out the topics and issues the Council will address. The Council of the European Union is represented in negotiations with other EU institutions by the presidency.

COREPER

COREPER is made up of senior civil servants from member states. This body prepares the work of the Council of the European Union and is chaired by an official from the member state holding the Council Presidency. Most countries organize their input to EU decision making around the body's weekly meetings. There are two formations of COREPER:

COREPER II: brings together the heads of national missions, known as Permanent Representations, that all member states have in Brussels.

COREPER I: brings together Deputy Permanent Representatives.